

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Grace Stephen	Team: Squad #08	CCRB Case #: 202311532	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/12/2023 2:50 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/12/2025	Precinct: 75		
Date/Time CV Reported Fri, 12/08/2023 1:32 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 12/08/2023 1:32 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Danny Cama	08924	939964	075 PCT
2. PO Casey Haft	14068	971985	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Justin Johnston	05219	972714	075 PCT
2. PO Michael Citroen	11506	969016	075 PCT
3. PO Daniel Ingber	05331	940283	075 PCT
4. PO Rolex Roldan	25139	955408	075 PCT
5. SGT Kevin Tresham	02252	935868	075 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Danny Cama	Abuse: Police Officer Danny Cama entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . PO Casey Haft	Abuse: Police Officer Casey Haft entered § 87(2)(b) in Brooklyn.	B . Substantiated
C . PO Danny Cama	Abuse: Police Officer Danny Cama entered § 87(2)(b) room located at § 87(2)(b) in Brooklyn.	C . Substantiated
D . PO Danny Cama	Abuse: Police Officer Danny Cama improperly used his body-worn camera.	D . Substantiated
E . PO Casey Haft	Abuse: Police Officer Casey Haft improperly used her body-worn camera.	E . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On December 8, 2023, § 87(2)(b) filed this complaint with the CCRB via the call processing system on behalf of himself.

After being released from her October 11, 2023 arrest, § 87(2)(b) went to the 75th station house and requested that 75th Precinct Police Officers Danny Cama and PO Casey Haft retrieve her belongings from § 87(2)(b) residence. PO Cama and PO Haft returned to § 87(2)(b) (who was still in police custody from the same arrest) residence, at § 87(2)(b) in Brooklyn, and entered the residence (**Allegations A and B: Abuse of Authority, Substantiated**). Once inside, PO Cama entered § 87(2)(b) locked bedroom (**Allegation C: Abuse of Authority, Substantiated**) and retrieved the belongings. While at the scene, PO Cama and PO Haft did not activate their body-worn cameras (BWCs) (**Allegations D and E: Abuse of Authority, Substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

As a result of this incident, § 87(2)(b) was arrested for 2nd degree assault, with intent to cause serious physical injury to another person (**Board Review 01**).

Six BWC videos were received regarding § 87(2)(b) arrest (**Board Review 02**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Danny Cama entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Casey Haft entered § 87(2)(b) in Brooklyn.

Allegation (C) Abuse of Authority: Police Officer Danny Cama entered § 87(2)(b) room located at § 87(2)(b) in Brooklyn.

Allegation (D) Abuse of Authority: Police Officer Danny Cama improperly used his body-worn camera.

Allegation (E) Abuse of Authority: Police Officer Casey Haft improperly used her body-worn camera.

§ 87(2)(b) testified (**Board Review 03**) that upon his arrival at the station house on October 11, 2023, the officers vouchered his house keys, and a dark brown leather belt, and then placed him inside the holding cell, until he was transferred to central booking, where he remained until the next day. After being transferred back to the station house, a desk officer (who was not present for his arrest) returned § 87(2)(b) vouchered property except his belt. When § 87(2)(b) enquired where his belt was, the officer called § 87(2)(b) arresting officer, who told the desk officer that the belt was in § 87(2)(b) house on a chair in his room. When § 87(2)(b) returned home, he asked his mother if the police officers returned to the house. She told him that the police did not return. § 87(2)(b) looked inside his room, where he found the belt on the chair. § 87(2)(b) brother, § 87(2)(b) informed him that he heard someone entering the residence sometime after § 87(2)(b) arrest. § 87(2)(b) believed it was § 87(2)(b) but when he got up, the police were already outside. § 87(2)(b) noted that his mother is located on the first floor, while his sister and brother are upstairs. No one saw anyone enter the house. § 87(2)(b) noted that at no point did any officer inform him that they were returning to his residence, nor did they ask or inform him of anything regarding his belt or returning it until the desk officer informed him where the belt was. At no point did he give any officer permission to return to his residence.

§ 87(2)(b) attested (**Board Review 04**) that he lay awake on his bed, inside his open bedroom located in the basement. § 87(2)(b) bedroom (the first room) is the closest to the basement stairs and is adjacent to § 87(2)(b) bedroom. When facing § 87(2)(b) room, § 87(2)(b) room is located on the left. He did not hear the individuals approach the apartment or unlock the front door to the apartment. There are two doors to enter the apartment building, which lock automatically. § 87(2)(b) noted that when someone enters the building, they must “walk down the little hallway, then make a quick right to come down the stairs.” At that time, he was the only person downstairs in the basement, while his mother, who lived on the first floor, was at the apartment at that time. He heard loud footsteps from two individuals coming towards the basement. He did not observe the individuals but could see moving flashlights outside in the basement hallway through his open door. § 87(2)(b) heard dispatch radios, which led him to believe the individuals were officers. The officers did not announce their presence. § 87(2)(b) heard the officers walk towards § 87(2)(b) bedroom and heard keys in their hands. § 87(2)(b) noted that the front door keys were different from the keys for § 87(2)(b) room, which § 87(2)(b) always locked, and on the incident date, § 87(2)(b) locked it after he was arrested and removed from the apartment. § 87(2)(b) heard the officers use the keys and unlock § 87(2)(b) door, open the door, and enter § 87(2)(b) room. He did not hear anything else and did not know what they did inside the room. After a “quick” time, he heard footsteps exiting the room, the door close, and lock. The officers walked upstairs, exited the apartment, and left. He did not see the officers, and at no point did he exit his bedroom. The officers did not enter any other part of the apartment. No one in the apartment relayed any information to § 87(2)(b) regarding unlocking the front door.

PO Cama vouchered § 87(2)(b) keys (three in total) on October 11, 2023, at 6:58 am (**Board Review 05**). PO Cama added an entry to the voucher on October 12, 2023, at 2:50 am stating that all items were returned to § 87(2)(b) (owner). On October 12, 2023, at 2:52 am, PO Cama created a new voucher, with § 87(2)(b) keys, writing “def[endant] agrees,” (**Board Review 06**). At 1:40 pm (October 12, 2023), PO Cama entered that the keys were released to § 87(2)(b). Both vouchers listed § 87(2)(b) and § 87(2)(b) as having different addresses (the latter’s address also matches that listed in her Department of Motor Vehicles (DMV) records in **Board Review 07**).

From 10:20 to 11:33 of PO Cama’s (**Board Review 08**) and PO Haft’s (**Board Review 22**) BWC footage from October 11, 2023, § 87(2)(b) sister opens the residence’s front door and confirms that § 87(2)(b) lives down downstairs. She allows the officers (who stand outside the threshold of the front door) entry to the residence. § 87(2)(b) sister walks upstairs. PO Cama and PO Haft walk downstairs to the basement, § 87(2)(b) opens his door, confirms his identity, and speaks with PO Cama. At 43:44 of PO Cama’s BWC footage (**Board Review 08**), PO Cama removes § 87(2)(b) belt during his arrest processing.

An NYPD Axon search for BWC footage from October 12, 2023, for PO Cama and PO Haft yielded negative results (**Board Review 09**).

PO Cama stated (**Board Review 10**) that § 87(2)(b) who had since been released from custody, arrived at the station house early October 12, 2023, requesting to retrieve her belongings. Officers relayed the information to PO Cama, who entered the station house and spoke to § 87(2)(b). She explained that that her property (a mesh black paper bag containing her belongings) was still at the incident location, § 87(2)(b) residence, and she was not able to retrieve it. PO Cama unvouchered and removed § 87(2)(b) vouchered set of keys from the station house. PO Cama did not seek § 87(2)(b) permission to take his keys, nor did § 87(2)(b) provide PO Cama with permission to take or use his keys. PO Cama acknowledged to the investigation that he was probably required to obtain § 87(2)(b) permission to gain possession and use his § 87(2)(b) keys. PO Cama was unsure if § 87(2)(b) was aware that he (PO Cama) or anyone took possession of his keys. PO Cama

did not discuss taking possession of § 87(2)(b) keys with a supervisor or obtain § 87(2)(b) permission and made this decision on his own because he did not want the situation with § 87(2)(b) who was causing “a big scene” at the station house, to escalate, and wanted to avoid any further incidents at the residence. (PO Cama noted that both § 87(2)(b) and § 87(2)(b) had orders of protection against each other.) PO Cama did not believe anything else was removed from § 87(2)(b) vouchered possessions, including a belt. PO Cama explained that sometimes the belt is vouchered and sometimes the belt is placed in the detainee’s/arrestee’s residence, and that “it depends.” Per procedure, prior to placing an arrestee into a holding cell, belts and shoelaces must be removed. PO Cama acknowledged that these were the keys that he removed and later used to open § 87(2)(b) room. PO Cama informed PO Haft that they were going to return to § 87(2)(b) residence, at which point PO Cama and PO Haft drove § 87(2)(b) to § 87(2)(b) residence. There, PO Cama opened the front door and entered the residence. He did not remember if he used the keys to open the door or if the door was already unlocked. He did not make his presence known while inside the residence. PO Haft and § 87(2)(b) did not follow behind him. § 87(2)(b) never had access to the residence and did not have keys to § 87(2)(b) room. PO Cama went downstairs to the basement. PO Cama did not make his presence known because it was at night. PO Cama, who remembered that the middle room belonged to § 87(2)(b) based on the latter’s arrest the previous night, used a key from the set to open the locked door of § 87(2)(b) room. Once inside § 87(2)(b) room, PO Cama did not touch anything or search anywhere, and only removed § 87(2)(b) bag, which was immediately visible to him in the exact location that § 87(2)(b) described. PO Cama did not know if he vouchered § 87(2)(b) belt, and said it was possible that he returned the belt when he retrieved § 87(2)(b) bag. PO Cama explained that returning § 87(2)(b) belt would only be to safeguard the belt and for no other reason. This decision was not discussed with any supervisor.

PO Cama exited the room, closed the door, and locked the door behind him with the bedroom key. He estimated being inside the room for one minute. He returned upstairs, exited the residence, and closed the residence’s front door but did not remember if he locked it. PO Cama gave § 87(2)(b) her property, and she left the scene on foot. PO Cama and PO Haft returned to the vehicle and drove back to the station house, where he created a new voucher with the set of keys. PO Cama expounded that the property owner must sign off on their property being released back to them (the owner), but not if the property is removed from a voucher or not released to the owner. The supervisor must sign off on each property voucher, and in this case, PO Cama may have told the supervisor that he needed to re-voucher the keys. PO Cama was equipped with a BWC during the incident but did not activate it because the decision to take the key and return to the residence and subsequent actions were quick. PO Cama acknowledged during his CCRB interview that it probably should have been activated.

PO Haft’s statement (**Board Review 11**) was consistent with that of PO Cama. § 87(2)(b) was adamant about retrieving her belongings (a tote bag) from his room. PO Cama made the decision (without speaking to a supervisor or anyone else at the station house) to retrieve § 87(2)(b) vouchered key. PO Cama did not get permission from § 87(2)(b) to take the latter’s key. Upon their arrival at § 87(2)(b) residence, PO Haft did not recall if the residence’s front door was unlocked or if PO Cama used a key to open the front door. PO Cama and PO Haft entered the residence, while § 87(2)(b) remained outside. The officers did not make their presence known. PO Haft did not observe anyone present, nor did she hear anyone say anything when they entered. PO Haft remained in the hallway on the first floor, while PO Cama went downstairs to the basement and retrieved § 87(2)(b) tote bag from § 87(2)(b) room. At no point did PO Haft go downstairs or enter § 87(2)(b) room. After approximately one minute, PO Cama returned upstairs and provided § 87(2)(b) with her belongings, and the two officers resumed patrolling. PO Haft did not activate

her BWC during this incident because she did not think to do so. She did not know if she was required to activate it.

Payton v. New York, 445 U.S. 573 [1980] (**Board Review 12**), ruled that a warrantless entry, absent exigent circumstances, into a home is “presumptively unreasonable” and prohibited under the 4th Amendment.

In People v. McCullum, 159 A.D.3d 8 [2d Dept 2018] (**Board Review 13**), the defendant argued that there was no need for an officer to reenter the apartment that he occupied with a suspect once said suspect was apprehended. Here, the court ruled that the defense must establish grounds for a legitimate expectation of privacy in the place.

People v. Adams, 53 N.Y.2d 1 [1981] (**Board Review 14**), declared that officer entry to the premises “was granted by somebody who ostensibly had permission,” to admit them, and thus, no warrant was required.

PG Procedure 212-123 (**Board Review 15**) requires uniformed members-of-service (MOS) to activate their BWCs prior to engaging in police action, which includes responding to calls and any self-initiated enforcement actions.

PO Cama took it upon himself to retrieve § 87(2)(b) vouchered keys without seeking or obtaining permission from § 87(2)(b) to retrieve § 87(2)(b) property. § 87(2)(g)

§ 87(2)(b) In fact, per PO Haft, the two officers asked § 87(2)(b) to retrieve her property the next day or wait until § 87(2)(b) was released from custody. § 87(2)(g)

§ 87(2)(b) NYPD and DMV documents show that § 87(2)(b) did not list § 87(2)(b) residence as her address, and officer statements established that she informed them that she did not have access to the residence or § 87(2)(b) room. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations A through C** be closed as **Substantiated**.

§ 87(2)(g) neither officer activated their BWCs: § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations D and E** be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (**Board Review 19**).
- PO Cama has been a member-of-service for 18 years and has been a subject in 14 other CCRB complaints and 27 other allegations, of which five were Substantiated:
 - 202000826 involved one Substantiated allegation of physical force against PO Cama. The Board recommended Command Discipline B, and the NYPD imposed No Penalty.
 - 202200291 involved four Substantiated allegations: one for sexual misconduct (sexual/romantic proposition); one for discourtesy - word; one for offensive language - gender; and one for making an untruthful statement - misleading official statement. For all four Substantiated allegations, the Board recommended Charges, and the NYPD has not yet imposed discipline.
 - § 87(2)(g) [REDACTED]
- PO Haft has been a member-of-service for three years, and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of March 4, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 20**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 8

Investigator:	<u>Grace Stephen</u> Signature	<u>Investigator Grace Stephen</u> Print Title & Name	<u>08/13/2024</u> Date
Squad Leader:	<u>Ethan De Angelo</u> Signature	<u>IM Ethan De Angelo</u> Print Title & Name	<u>08/14/2024</u> Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date